



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

November 21, 2023

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 20902
(THIRD REVISION)

EXPIRATION DATE: 2027-10-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Eastern Upper Peninsula Transportation Authority
Sault Sainte Marie, MI
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the transportation in commerce of certain hazardous materials in motor vehicles aboard ferry vessels, which do not have two sets of breathing apparatus. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171- 180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 176.164(e) in that a vessel must have two sets of breathing apparatus, except as specified herein.

Tracking Number: 2023104947

5. BASIS: This special permit is based on the application of Eastern Upper Peninsula Transportation Authority dated October 18, 2023, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Acetic acid solution	8	UN2790	II
Ammonium nitrate based fertilizer	5.1	UN2067	III
Ammonium nitrate emulsion	5.1	UN3375	II
Boosters, <i>without detonator</i> *	1.1D	UN0042	N/A
Detonator assemblies, non-electric, <i>for blasting</i> *	1.4B	UN0361	N/A
Detonators, electric*	1.4B	UN0255	N/A
Explosive, blasting, type E <i>or</i> Agent blasting, Type E*	1.5D	UN0332	N/A
Fireworks*	1.1G	UN0333	N/A
Fireworks*	1.3G	UN0335	N/A
Fireworks*	1.4G	UN0336	N/A
Fusee (<i>railway or highway</i>)	4.1	NA1325	II
Oxidizing liquid, toxic, n.o.s. (contains sodium nitrite, calcium nitrate)	5.1	UN3099	II

*Explosives must be classed in accordance with § 173.56.

7. SAFETY CONTROL MEASURES:
- a. PACKAGING: As authorized in the HMR or an approval issued by the Associate Administrator, as appropriate.

b. OPERATIONAL CONTROLS:

- (1) Only one motor vehicle may be transported on each ferry vessel. The motor vehicle must be transported on deck of an open-deck ferry vessel.
- (2) Transportation is only authorized between Detour Village, MI and Drummond Island, MI.
- (3) Only the motor vehicle driver and up to three ferry vessel personnel are authorized on board the ferry vessel.
- (4) Passengers are prohibited on board the ferry vessel.
- (5) The motor vehicle with explosives must be located as far as practicable from machinery spaces and the bridge.
- (6) A fire hose of sufficient length to reach every part of the loading area with an efficient stream of water must be laid out and connected to the fire main ready for immediate use.
- (7) Two 15-pound A/B/C extinguishers or equivalent must be readily available for immediate use.
- (8) Transportation is only authorized to support shipment of essential hazardous materials to support mining activities on Drummond Island and firework displays for New Year's Day and Independence Day celebrations.

8. SPECIAL PROVISIONS: A current copy of this special permit must be maintained at the Drummond Island Ferry Dock in Detour Village, MI and Drummond Island, MI.

9. MODES OF TRANSPORTATION AUTHORIZED: Ferry vessel.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each ferry vessel used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.

- o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit **must receive training** on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. **REPORTING REQUIREMENTS:** Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: H Sadoff/Casey Chambers